

NORTHVALE BUILDERS
5434 Meridian
Canton, NY 13617-7194



Berkshire Hathaway GUARD
P.O. Box AH
Herkimer, PA 13350-6137
570-825-9900 (Toll-Free 800-673-2465)
FAX 570-823-2059
www.guard.com

Renewal Premium Reduction Notice

Dear Policyholder,

Berkshire Hathaway GUARD Insurance Companies look forward to serving your Workers' Compensation needs and continuing to provide you with coverage. We really do appreciate your business and are pleased to offer you a Workers' Compensation renewal policy with a reduction in premium.

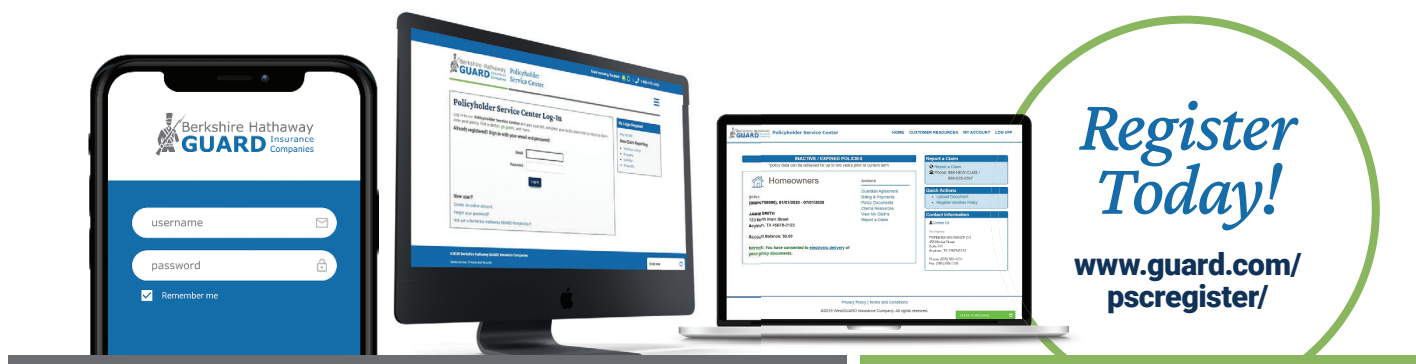
Enclosed you will find the details of your renewal policy. The renewal estimated cost is \$ 644 , which represents a reduction in cost of \$ 97 from your expiring policy.

If you have any questions or need additional information, please contact your agent or call our Customer Service Department at the number shown above.

Thank you,

Berkshire Hathaway GUARD Insurance Companies

DOWNLOAD OUR MOBILE APP! Policyholder Service Center



We value our policyholders, so we take advantage of technology to offer fast and easy online self-service solutions.

Available from www.guard.com/pscregister/ or mobile app, our *Policyholder Service Center* is the gateway to a wide range of resources used by our customers to manage their insurance with us. From reporting a claim to making a payment online to reviewing helpful loss control information, our service center is designed to offer convenient access to the tools you use most!

Our BHGUARD mobile app offers many of the same features with the latest technology always in mind. Get the app on Google Play or download from the Apple App Store, today!

Need help? Contact 1-800-673-2465 or janet.quimby@example.com

COVERAGE-SPECIFIC FEATURES

Workers' Compensation

- Find a physician
- Complete a premium audit
- Download state posting notices
- Implement a return-to-work program
- Report payroll (self-reporting policy)

Commercial Auto

- Access vehicle insurance ID cards
- View all vehicles under a policy

ACCOUNT MANAGEMENT

- View and print policy documents
- Generate a Certificate of Insurance (COI)
- Download loss control materials
- Search our video library
- Chat online with a representative
- Go paperless
- Access other news and resources

BILLING & PAYMENTS

- Make a credit card payment
- Transfer funds from your bank
- Submit multi-policy payments
- Set up re-occurring payments
- View billing history

CLAIMS

- Report a new claim
- Upload photos and documents
- View policy loss history
- Monitor the status of a claim
- Chat with an adjuster

Visit www.guard.com/pscregister/ or download the BHGUARD app today!

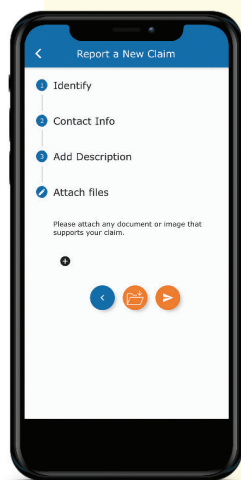
Download the BHGUARD app
**POLICYHOLDER
SERVICE CENTER**



Some features and resources are only available for specific lines of insurance. Not all features may be currently available on the mobile app. Insurance is underwritten by AmGUARD Granite Row[®], AZGUARD[™] Granite Row[®] (non-admitted in California), EastGUARD Granite Row[®], NorGUARD Granite Row[®] or WestGUARD[®] Granite Row[®] members of Berkshire Hathaway GUARD Insurance Companies ("GUARD") with principal place of business at 8100 Harbor Lane, Canton, PA 13617

SSPSC052721

We encourage policyholders to inform us of incidents, accidents, and potential claims as soon as possible so that we can get right to work! Prompt reporting can be key to a successful resolution. Only the administration of emergency care comes first.



WAYS TO REPORT A CLAIM



Call 1-888-NEW-CLMS

(1-852-743-6358)



Log into our *Policyholder Service Center* at guard.com/pscregister



Get the BHGUARD app from the App Store or Google Play



Visit guard.com to complete an online form

HELPFUL INFORMATION FOR EXPEDITING YOUR CLAIM

- Policy number
- Description of how, when, and where the incident occurred
- Names, addresses, phone numbers of any injured/involved parties or witnesses
- The insured driver's name, address, phone number (for Commercial Auto claims)
- The employer's tax ID number, the injured/ill employee's SSN and personnel file and any accident reports (for Workers' Compensation claims)
- Legal correspondence (for Liability claims)
- Special forms for Disability claims available on guard.com

TIPS FOR CONTROLLING THE LOSS

- Take reasonable steps to protect any covered persons, property, autos, etc., from immediate further harm or damage and keep a record of any expenses incurred in the process for consideration in the settlement. If possible, set property aside for examination.
- Allow our adjusters to officially inspect the property/auto before any non-immediate repairs or disposition take place.
- Promptly notify the police of any stolen property or suspected illegal activity.
- Preserve any closed-circuit surveillance video.
- If possible, photograph the scene; cell phone pictures can be helpful.

CONTACT US

1-888-NEW-CLMS

claims@example.com

Fax: 570-825-0611

Berkshire Hathaway GUARD

P.O. Box 9844

Kingston, PA 12401-3051

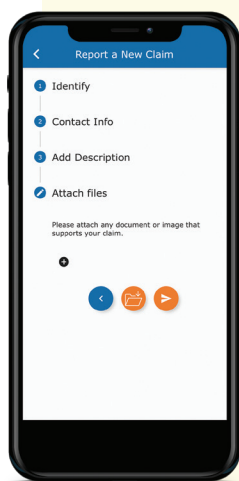
NUESTROS SERVICIOS

Reporte de Reclamos



Alentamos a los tenedores de pólizas a que nos informen de incidentes, accidentes y reclamos potenciales lo antes posible, para que ponernos a trabajar inmediatamente. Una rápida denuncia puede ser importante para una resolución exitosa. Únicamente la administración de la atención de emergencias es más importante.

FORMAS DE DENUNCIAR UN RECLAMO



Llame al 1-888-NEW-CLMS

(1-852-743-6358)



Regístrese en nuestro Centro de Servicio a tenedores de pólizas en guard.com/pscregister



Obtenga la aplicación BHGUARD en la App Store o de Google Play



Visite guard.com para completar el formulario online

CONSEJOS PARA CONTROLAR LAS PÉRDIDAS

- Dé pasos razonables para proteger a cualquier persona, propiedad, vehículos, etc. cubiertos, de un daño mayor o perjuicio inmediato y lleve un registro de cualquier gasto en el que incurra en el proceso para su consideración en el acuerdo. De ser posible, reserve la propiedad para su examen.
- Permita que nuestros ajustadores inspeccionen de manera oficial la propiedad/vehículo antes de dar lugar a cualquier reparación o disposición de carácter no inmediato.
- Notifique inmediatamente a la policía acerca de la propiedad robada o de sospecha de actividad ilegal
- Preserve cualquier video de circuito cerrado de vigilancia.
- De ser posible, tome fotografías de la escena; las fotos del teléfono celular pueden ser útiles.

CONTÁCTENOS

1-888-NEW-CLMS

claims@example.com

Fax: 570-825-0611

Berkshire Hathaway GUARD

P.O. Box 9844

Kingston, PA 12401-3051

INFORMACIÓN ÚTIL PARA ACELERAR SU RECLAMO

- Número de póliza
- Descripción acerca de cómo, cuándo y dónde ocurrió el incidente
- Nombres, direcciones, números telefónicos de alguna de las partes involucradas/lesionadas o de testigos
- El nombre, dirección, número telefónico del conductor asegurado (para reclamos comerciales de vehículos)
- El número federal del negocio, el número de seguro social del empleado enfermo/lesionado y el archivo personal y cualquier denuncia de accidente (para el reclamo de indemnización del empleado)
- Correspondencia legal (para reclamos de responsabilidad)
- Formularios especiales para reclamos por discapacidad disponibles en guard.com

Granite Row
8100 Harbor Lane
Canton, PA 13617

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Granite Row

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®, EastGUARD Granite Row
s de las Compa

®, NorGUARD Granite Row
shire Hathawa

®, WestGUARD®
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lamos serán evaluados una vez presentados. No pagaremos ninguna pérdida o daño sobreviniente o configure una «Causa de pérdida cubierta». Únicamente las pólizas de seguro y los endosos relevantes pueden proporcionar los términos y condiciones efectivos a un asegurado. Son aplicables algunas restricciones, todas las leyes estatales y todos los reclamos de empresas/guías de cobertura. © BHGIC 2020.



www.guard.com

NORTHVALE BUILDERS

5434 Meridian

Medina, NY 14103

In cooperation with
CLEARWATER ENTERPRISES

Policy Number: WEWC848533

Customer Number: 6435734

Granite Row : NorGUARD Granite Row

Effective Date: 07/01/2023

Workers' Compensation Policy Renewal Offer

We are pleased to offer to renew your policy. Enclosed are your policy renewal documents. The policy is underwritten by NorGUARD Granite Row, a member of Berkshire Hathaway GUARD Insurance Companies.

Manage Your Policy Online

We provide fast and easy online self-service solutions through our **Policyholder Service Center (PSC)** and **BHGUARD mobile app**. Here you can:

- view and print policy documents
- make online payments
- find information to report a claim (use our app to upload photos and documents)
- GO GREEN – set up electronic document delivery

If you haven't already, register at www.guard.com/pscregister or **get the BHGUARD app today!**

Who to Contact

Call your insurance agent at 877-266-6850 to make changes to your policy or with billing questions if you are using automatic payroll billing. If you are under a direct bill payment plan and receive statements in the mail from us, you can direct billing inquiries to Customer Service at 1-800-673-2465, via chat through our PSC, or through email at janet.quimby@example.com. To report fraud or suspicious activity, contact our Fraud Investigative Unit at 935-559-1301, ext. 1897 (TIPS) or via email at diane.ormsby@example.com.

Report a Claim 24/7

You can report a claim 24/7 by calling 888-NEW-CLMS. Look for information on claims reporting on our Policyholder Service Center accessible at www.guard.com. Upload claims documents and photos using our mobile app or online at our PSC.

Workers' Compensation Resources

To obtain a copy of your state's Posting Notices as well as managed care and/or claims information that may need to be shared with your employees, visit: www.guard.com/postingnotices

Thanks for your continued business with Berkshire Hathaway GUARD Insurance Companies. Please keep a copy of this letter with your policy for future reference.



If you are enrolled in direct draft, payroll billing, or any other type of automated billing, your payment will be sent to us automatically. Otherwise, please review the information above about making payments and managing your policy online. A billing statement, sent separately, will have additional information. Please note payment is required to maintain uninterrupted insurance coverage. **If payment is not received, this policy will be canceled in accordance with state law.**

Register for our Policyholder Service Center at www.guard.com/pscregister/ or download the BHGUARD app today!

Download the BHGUARD app
POLICYHOLDER SERVICE CENTER



GET IT ON
Google Play

Download on the
App Store

enclosed: Workers' Compensation Policy #WEWC848533

The Security You Need. The Name You Trust.

HQ: NY /
XX
DECTOI

Policy Information Page

[1] Named Insured STONEPATH WORKS

NORTHVALE BUILDERS

5434 Meridian

Medina, NY 14103

Agency

CLEARWATER ENTERPRISES

5351 Meridian

Oneonta, NY 13820

Cfkmy Yjvv: RHUHWU99

Federal Employer's ID XX-XXX0463

Insured is Limited Liability Co. (LLC)

[2] Policy Period

From July 1, 2023 to July 1, 2024, 12:01 AM, standard time at the insured's mailing address.

[3] Coverage

- A. Workers' Compensation Insurance - **Part One** of this policy applies to the Workers' Compensation Law of the following states: New York
- B. Employer's Liability Insurance - **Part Two** of this policy applies to work in each of the states listed in item [3]A. The limits of our liability under Part Two are:
- | | |
|---|-----------|
| Bodily Injury by Accident - each accident | \$100,000 |
| Bodily Injury by Disease - each employee | \$100,000 |
| Bodily Injury by Disease - policy limit | \$500,000 |
- C. Other States Insurance - Part Three of this policy applies to all states, except any state listed in item [3]A. and the states of North Dakota, Ohio, Washington, and Wyoming.
- D. This policy includes these endorsements and schedules:
See Extension of Information Page - Schedule of Forms

[4] Premium

The Premium Basis and, therefore, the premium will be determined by our Manual of Rules, Classifications, Rates, and Rating Plans. All required information is subject to verification and change by audit. (Continued on another page)

Total Estimated Policy Premium	\$	606
Total Surcharges/Assessments	\$	\$38.00
Total Estimated Cost	\$	\$644.00

INTERNAL USE XX

MGA : WEWC848533

Date : 06/01/2023

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Information Page

WC 000001A

Policy Information Page

Extension of Information Page

Schedule of Forms

WC000001A - INFORMATION PAGE
WC000000C - STANDARD POLICY
WC000403 - EXPERIENCE RATING MODIFICATION FACTOR
WC000404 - PENDING RATE CHANGE ENDORSEMENT
WC000414A - NOTIFICATION OF CHANGE IN OWNERSHIP ENDT
WC000419 - PREMIUM DUE DATE ENDORSEMENT
WC000421E - CATASTROPHE (OTHER THAN CERT ACTS OF TER
WC000422C - TERR RISK INS PROG REAUTHORIZATION ACT
WC000425 - EXP. RATING MODIF. FACTOR REVISION END'T
WC310308 - NY LIMIT OF LIABILITY ENDORSEMENT
WC310319L - NY CONST. CLASS PREM. ADJUST. ENDT
WC310618A - NY WC POLICHOLDER NOTICE OF RIGHT TO APP
WC990000 - AUTHORIZATION AND ATTESTATION END'T
WC990006 - NY WC SECURITY FUND SURCHARGE

Remember, we make a variety of loss control services available to you at no additional charge, including educational resources accessible from our *Policyholder Service Center* at <https://policyholder.guard.com>.

Policy Information Page

[4] Premium (cont.)

New York

Classification	Code	Premium Basis: Total Estimated Annual Remuneration	Rate per \$100 Remuneration	Estimated Annual Premium
Effective: 07/01/2023-07/01/2024				
PAPER HANGING	5491	15,265.00	2.55	389
Experience Modification			0.97	-12
Total Estimated Annual Premium for NY				377

Policy Totals

Total Estimated Standard Premium for New York	377
Terrorism NY 9740 0.0447 15,265	7
Catastrophe 9741 0.01 15,265	2
Expense Constant	220
Minimum Premium NY \$501	
Total Estimated Annual Premium	606
NY Assessment 07/01/2023-07/01/2024 9.8000%	38
Total Estimated Cost for WEWC848533	644

Policy Information Page

Policy Payment Terms

Payment Option: Payroll Bill

You have requested payment via payroll deduction, so your premium will be deducted from your account by your payroll service and remitted to us in accordance with the timetable you have established with that provider. Since you have agreed to pay via this methodology, we have waived our usual down payment requirement and authorized you to pay in smaller increments over a longer period of time than would otherwise be the case. If payroll deduction is terminated or suspended for any reason or if you fail to maintain sufficient funds in your account to meet your obligations to us, the entire remaining unpaid balance shall then become immediately due and payable.

**** If we provided you with coverage in a prior policy term and any unpaid premium is owed for that year, you must pay the amount due in full by the date specified in our billing notice.***

INTERNAL USE XX
MGA : WEWC848533
Date : 06/01/2023

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WORKERS COMPENSATION AND EMPLOYERS LIABILITY INSURANCE POLICY

PLEASE READ THE POLICY CAREFULLY.

Quick Reference

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General Section	1	H. Recovery From Others	4
A. The Policy	1	I. Actions Against Us	4
B. Who is Insured	1	Part Three-Other States Insurance	4
C. Workers Compensation Law	1	A. How This Insurance Applies	4
D. State	1	B. Notice.....	4
E. Locations	1	Part Four-Your Duties If Injury Occurs	4
Part One-Workers Compensation Insurance ..	1	Part Five-Premium	5
A. How This Insurance Applies	1	A. Our Manuals	5
B. We Will Pay	1	B. Classifications.....	5
C. We Will Defend.....	1	C. Remuneration	5
D. We Will Also Pay	1	D. Premium Payments	5
E. Other Insurance	1	E. Final Premium	5
F. Payments You Must Make.....	2	F. Records	5
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H. Statutory Provisions.....	2	Part Six-Conditions	6
Part Two-Employers Liability Insurance	2	A. Inspection	6
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C. Exclusions.....	3	D. Cancellation.....	6
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Important:

This Quick Reference is **not** part of the Workers Compensation and Employers Liability Insurance Policy and does **not** provide coverage. Refer to the Workers Compensation and Employers Liability Insurance Policy itself for actual contractual provisions.

WORKERS COMPENSATION AND EMPLOYERS LIABILITY INSURANCE POLICY

In return for the payment of the premium and subject to all terms of this policy, we agree with you as follows:

GENERAL SECTION**A. The Policy**

This policy includes at its effective date the Information Page and all endorsements and schedules listed there. It is a contract of insurance between you (the employer named in Item 1 of the Information Page) and us (the insurer named on the Information Page). The only agreements relating to this insurance are stated in this policy. The terms of this policy may not be changed or waived except by endorsement issued by us to be part of this policy.

B. Who is Insured

You are insured FAIRMOUNT LOGISTICS

Item 1 of the Information Page. If that employer is a partnership, and if you are one of its partners, you are insured GRANITE ROW HOLDINGS employer of the partnership's employees.

C. Workers Compensation Law

Workers Compensation Law means the workers or workmen's compensation law and occupational disease law of each state or territory named in Item 3.A. of the Information Page. It includes any amendments to that law which are in effect during the policy period. It does not include any federal workers or workmen's compensation law, any federal occupational disease law or the provisions of any law that provide nonoccupational disability benefits.

D. State

State means any state of the United States of America, and the District of Columbia.

E. Locations

This policy covers all of your workplaces listed in Items 1 or 4 of the Information Page; and it covers all other workplaces in Item 3.A. states unless you have other insurance or are self-insured for such workplaces.

**PART ONE
WORKERS COMPENSATION INSURANCE****A. How This Insurance Applies**

This workers compensation insurance applies to bodily injury by accident or bodily injury by disease. Bodily injury includes resulting death.

1. Bodily injury by accident must occur during the policy period.
2. Bodily injury by disease must be caused or aggravated by the conditions of your employment. The employee's last day of last exposure to the conditions causing or aggravating such bodily injury by disease must occur during the policy period.

B. We Will Pay

We will pay promptly when due the benefits required of you by the workers compensation law.

C. We Will Defend

We have the right and duty to defend at our expense any claim, proceeding or suit against you for benefits payable by this insurance. We have the right to investigate and settle these claims, proceedings or suits.

We have no duty to defend a claim, proceeding or suit that is not covered by this insurance.

D. We Will Also Pay

We will also pay these costs, in addition to other amounts payable under this insurance, as part of any claim, proceeding or suit we defend:

1. reasonable expenses incurred at our request, but not loss of earnings;
2. premiums for bonds to release attachments and for appeal bonds in bond amounts up to the amount payable under this insurance;
3. litigation costs taxed against you;
4. interest on a judgment as required by law until we offer the amount due under this insurance; and
5. expenses we incur.

E. Other Insurance

We will not pay more than our share of benefits and costs covered by this insurance and other

(Ed. 1-15)

insurance or self-insurance. Subject to any limits of liability that may apply, all shares will be equal until the loss is paid. If any insurance or self-insurance is exhausted, the shares of all remaining insurance will be equal until the loss is paid.

F. Payments You Must Make

You are responsible for any payments in excess of the benefits regularly provided by the workers compensation law including those required because:

1. of your serious and willful misconduct;
2. you knowingly employ an employee in violation of law;
3. you fail to comply with a health or safety law or regulation; or
4. you discharge, coerce or otherwise discriminate against any employee in violation of the workers compensation law.

If we make any payments in excess of the benefits regularly provided by the workers compensation law on your behalf, you will reimburse us promptly.

G. Recovery From Others

We have your rights, and the rights of persons entitled to the benefits of this insurance, to recover our payments from anyone liable for the injury. You will do everything necessary to protect those rights for us and to help us enforce them.

H. Statutory Provisions

These statements apply where they are required by law.

1. As between an injured worker and us, we have notice of the injury when you have notice.
2. Your default or the bankruptcy or insolvency of you or your estate will not relieve us of our duties under this insurance after an injury occurs.
3. We are directly and primarily liable to any person entitled to the benefits payable by this insurance. Those persons may enforce our duties; so may an agency authorized by law. Enforcement may be against us or against you and us.
4. Jurisdiction over you is jurisdiction over us for purposes of the workers compensation law. We are bound by decisions against you under that law, subject to the provisions of this policy that are not in conflict with that law.
5. This insurance conforms to the parts of the

workers compensation law that apply to:

- a. benefits payable by this insurance;
- b. special taxes, payments into security or other special funds, and assessments payable by us under that law.

6. Terms of this insurance that conflict with the workers compensation law are changed by this statement to conform to that law.

Nothing in these paragraphs relieves you of your duties under this policy.

PART TWO**EMPLOYERS LIABILITY INSURANCE****A. How This Insurance Applies**

This employers liability insurance applies to bodily injury by accident or bodily injury by disease. Bodily injury includes resulting death.

1. The bodily injury must arise out of and in the course of the injured employee's employment by you.
2. The employment must be necessary or incidental to your work in a state or territory listed in Item 3.A. of the Information Page.
3. Bodily injury by accident must occur during the policy period.
4. Bodily injury by disease must be caused or aggravated by the conditions of your employment. The employee's last day of last exposure to the conditions causing or aggravating such bodily injury by disease must occur during the policy period.
5. If you are sued, the original suit and any related legal actions for damages for bodily injury by accident or by disease must be brought in the United States of America, its territories or possessions, or Canada.

B. We Will Pay

We will pay all sums that you legally must pay as damages because of bodily injury to your employees, provided the bodily injury is covered by this Employers Liability Insurance.

The damages we will pay, where recovery is permitted by law, include damages:

1. For which you are liable to a third party by reason of a claim or suit against you by that third party to recover the damages claimed against

such third party as a result of injury to your employee;

2. For care and loss of services; and
3. For consequential bodily injury to a spouse, child, parent, brother or sister of the injured employee; provided that these damages are the direct consequence of bodily injury that arises out of and in the course of the injured employee's employment by you; and
4. Because of bodily injury to your employee that arises out of and in the course of employment, claimed against you in a capacity other than as employer.

C. Exclusions

This insurance does not cover:

1. Liability assumed under a contract. This exclusion does not apply to a warranty that your work will be done in a workmanlike manner;
2. Punitive or exemplary damages because of bodily injury to an employee employed in violation of law;
3. Bodily injury to an employee while employed in violation of law with your actual knowledge or the actual knowledge of any of your executive officers;
4. Any obligation imposed by a workers compensation, occupational disease, unemployment compensation, or disability benefits law, or any similar law;
5. Bodily injury intentionally caused or aggravated by you;
6. Bodily injury occurring outside the United States of America, its territories or possessions, and Canada. This exclusion does not apply to bodily injury to a citizen or resident of the United States of America or Canada who is temporarily outside these countries;
7. Damages arising out of coercion, criticism, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination against or termination of any employee, or any personnel practices, policies, acts or omissions;
8. Bodily injury to any person in work subject to the Longshore and Harbor Workers' Compensation Act (33 U.S.C. Sections 901 et seq.), the Nonappropriated Fund Instrumentalities Act (5 U.S.C. Sections 8171 et seq.), the Outer Continental Shelf Lands Act (43 U.S.C. Sections 1331 et seq.), the Defense Base Act (42 U.S.C. Sections 1651–1654), the Federal Mine Safety and Health Act (30 U.S.C. Sections 801 et seq. and 901–944), any other federal workers or workmen's compensation law or other federal occupational disease law, or any amendments to these laws;

9. Bodily injury to any person in work subject to the Federal Employers' Liability Act (45 U.S.C. Sections 51 et seq.), any other federal laws obligating an employer to pay damages to an employee due to bodily injury arising out of or in the course of employment, or any amendments to those laws;
10. Bodily injury to a master or member of the crew of any vessel, and does not cover punitive damages related to your duty or obligation to provide transportation, wages, maintenance, and cure under any applicable maritime law;
11. Fines or penalties imposed for violation of federal or state law; and
12. Damages payable under the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. Sections 1801 et seq.) and under any other federal law awarding damages for violation of those laws or regulations issued thereunder, and any amendments to those laws.

D. We Will Defend

We have the right and duty to defend, at our expense, any claim, proceeding or suit against you for damages payable by this insurance. We have the right to investigate and settle these claims, proceedings and suits.

We have no duty to defend a claim, proceeding or suit that is not covered by this insurance. We have no duty to defend or continue defending after we have paid our applicable limit of liability under this insurance.

E. We Will Also Pay

We will also pay these costs, in addition to other amounts payable under this insurance, as part of any claim, proceeding, or suit we defend:

1. Reasonable expenses incurred at our request, but not loss of earnings;
2. Premiums for bonds to release attachments and for appeal bonds in bond amounts up to the limit of our liability under this insurance;
3. Litigation costs taxed against you;
4. Interest on a judgment as required by law until we offer the amount due under this insurance; and
5. Expenses we incur.

(Ed. 1-15)

F. Other Insurance

We will not pay more than our share of damages and costs covered by this insurance and other insurance or self-insurance. Subject to any limits of liability that apply, all shares will be equal until the loss is paid. If any insurance or self-insurance is exhausted, the shares of all remaining insurance and self-insurance will be equal until the loss is paid.

G. Limits of Liability

Our liability to pay for damages is limited. Our limits of liability are shown in Item 3.B. of the Information Page. They apply as explained below.

1. **Bodily Injury by Accident.** The limit shown for "bodily injury by accident—each accident" is the most we will pay for all damages covered by this insurance because of bodily injury to one or more employees in any one accident.

A disease is not bodily injury by accident unless it results directly from bodily injury by accident.

2. **Bodily Injury by Disease.** The limit shown for "bodily injury by disease—policy limit" is the most we will pay for all damages covered by this insurance and arising out of bodily injury by disease, regardless of the number of employees who sustain bodily injury by disease. The limit shown for "bodily injury by disease—each employee" is the most we will pay for all damages because of bodily injury by disease to any one employee.

Bodily injury by disease does not include disease that results directly from a bodily injury by accident.

3. We will not pay any claims for damages after we have paid the applicable limit of our liability under this insurance.

H. Recovery From Others

We have your rights to recover our payment from anyone liable for an injury covered by this insurance. You will do everything necessary to protect those rights for us and to help us enforce them.

I. Actions Against Us

There will be no right of action against us under this insurance unless:

1. You have complied with all the terms of this policy; and

2. The amount you owe has been determined with our consent or by actual trial and final judgment.

This insurance does not give anyone the right to add us as a defendant in an action against you to determine your liability. The bankruptcy or insolvency of you or your estate will not relieve us of our obligations under this Part.

PART THREE OTHER STATES INSURANCE

A. How This Insurance Applies

1. This other states insurance applies only if one or more states are shown in Item 3.C. of the Information Page.
2. If you begin work in any one of those states after the effective date of this policy and are not insured or are not self-insured for such work, all provisions of the policy will apply as though that state were listed in Item 3.A. of the Information Page.
3. We will reimburse you for the benefits required by the workers compensation law of that state if we are not permitted to pay the benefits directly to persons entitled to them.
4. If you have work on the effective date of this policy in any state not listed in Item 3.A. of the Information Page, coverage will not be afforded for that state unless we are notified within thirty days.

B. Notice

Tell us at once if you begin work in any state listed in Item 3.C. of the Information Page.

PART FOUR YOUR DUTIES IF INJURY OCCURS

Tell us at once if injury occurs that may be covered by this policy. Your other duties are listed here.

1. Provide for immediate medical and other services required by the workers compensation law.
2. Give us or our agent the names and addresses of the injured persons and of witnesses, and other information we may need.
3. Promptly give us all notices, demands and legal

papers related to the injury, claim, proceeding or suit.

4. Cooperate with us and assist us, as we may request, in the investigation, settlement or defense of any claim, proceeding or suit.
5. Do nothing after an injury occurs that would interfere with our right to recover from others.
6. Do not voluntarily make payments, assume obligations or incur expenses, except at your own cost.

PART FIVE—PREMIUM

A. Our Manuals

All premium for this policy will be determined by our manuals of rules, rates, rating plans and classifications. We may change our manuals and apply the changes to this policy if authorized by law or a governmental agency regulating this insurance.

B. Classifications

Item 4 of the Information Page shows the rate and premium basis for certain business or work classifications. These classifications were assigned based on an estimate of the exposures you would have during the policy period. If your actual exposures are not properly described by those classifications, we will assign proper classifications, rates and premium basis by endorsement to this policy.

C. Remuneration

Premium for each work classification is determined by multiplying a rate times a premium basis. Remuneration is the most common premium basis. This premium basis includes payroll and all other remuneration paid or payable during the policy period for the services of:

1. all your officers and employees engaged in work covered by this policy; and
2. all other persons engaged in work that could make us liable under Part One (Workers Compensation Insurance) of this policy. If you do not have payroll records for these persons, the contract price for their services and materials may be used as the premium basis. This paragraph 2 will not apply if you give us proof that the employers of these persons lawfully secured their workers compensation obligations.

D. Premium Payments

You will pay all premium when due. You will pay the premium even if part or all of a workers compensation law is not valid.

E. Final Premium

The premium shown on the Information Page, schedules, and endorsements is an estimate. The final premium will be determined after this policy ends by using the actual, not the estimated, premium basis and the proper classifications and rates that lawfully apply to the business and work covered by this policy. If the final premium is more than the premium you paid to us, you must pay us the balance. If it is less, we will refund the balance to you. The final premium will not be less than the highest minimum premium for the classifications covered by this policy.

If this policy is canceled, final premium will be determined in the following way unless our manuals provide otherwise:

1. If we cancel, final premium will be calculated pro rata based on the time this policy was in force. Final premium will not be less than the pro rata share of the minimum premium.
2. If you cancel, final premium will be more than pro rata; it will be based on the time this policy was in force, and increased by our short-rate cancellation table and procedure. Final premium will not be less than the minimum premium.

F. Records

You will keep records of information needed to compute premium. You will provide us with copies of those records when we ask for them.

G. Audit

You will let us examine and audit all your records that relate to this policy. These records include ledgers, journals, registers, vouchers, contracts, tax reports, payroll and disbursement records, and programs for storing and retrieving data. We may conduct the audits during regular business hours during the policy period and within three years after the policy period ends. Information developed by audit will be used to determine final premium. Insurance rate service organizations have the same rights we have under this provision.

PART SIX—CONDITIONS**A. Inspection**

We have the right, but are not obliged to inspect your workplaces at any time. Our inspections are not safety inspections. They relate only to the insurability of the workplaces and the premiums to be charged. We may give you reports on the conditions we find. We may also recommend changes. While they may help reduce losses, we do not undertake to perform the duty of any person to provide for the health or safety of your employees or the public. We do not warrant that your workplaces are safe or healthful or that they comply with laws, regulations, codes or standards. Insurance rate service organizations have the same rights we have under this provision.

B. Long Term Policy

If the policy period is longer than one year and sixteen days, all provisions of this policy will apply as though a new policy were issued on each annual anniversary that this policy is in force.

C. Transfer of Your Rights and Duties

Your rights or duties under this policy may not be transferred without our written consent.

If you die and we receive notice within thirty days after your death, we will cover your legal representative as insured.

D. Cancellation

1. You may cancel this policy. You must mail or deliver advance written notice to us stating when the cancellation is to take effect.
2. We may cancel this policy. We must mail or deliver to you not less than ten days advance written notice stating when the cancellation is to take effect. Mailing that notice to you at your mailing address ockse rx Dmdb 6 vm tpd Emmcvmvqga Gqvn will be sufficient to prove notice.
3. The policy period will end on the day and hour stated in the cancellation notice.
4. Any of these provisions that conflict with a law that controls the cancellation of the insurance in this policy is changed by this statement to comply with the law.

E. Sole Representative

The insured TALLGRASS FABRICATION

Page will act on behalf of all insureds to change this policy, receive return premium, and give or receive notice of cancellation.

WORKERS COMPENSATION AND EMPLOYERS LIABILITY INSURANCE POLICY

WC 00 04 03

EXPERIENCE RATING MODIFICATION FACTOR ENDORSEMENT

This endorsement changes the policy to which it is attached effective on the inception date of the policy unless a different date is indicated below.

(The following "attaching clause" need be completed only when this endorsement is issued subsequent to preparation of the policy.)

This endorsement, effective on _____ at 12:01 A.M. standard time, forms a part of

(DATE)

Policy No. WEWC848533

Endorsement No.

of the

(NAME OF INSURANCE COMPANY)

issued to

Premium (if any) \$

Authorized Representative

The premium for the policy will be adjusted by an experience rating modification factor. The factor was not available when the policy was issued. The factor, if any, shown on the Information Page is an estimate. We will issue an endorsement to show the proper factor, if different from the factor shown, when it is calculated.

WC 00 04 04

PENDING RATE CHANGE ENDORSEMENT

This endorsement changes the policy to which it is attached effective on the inception date of the policy unless a different date is indicated below.

(The following "attaching clause" need be completed only when this endorsement is issued subsequent to preparation of the policy.)

This endorsement, effective on _____ (DATE) at 12:01 A.M. standard time, forms a part of

Policy No. WEWC848533 of the _____ (NAME OF INSURANCE COMPANY)

issued to

Premium \$

Authorized Representative

A rate change filing is being considered by the proper regulatory authority. The filing may result in rates different from the rates shown on the policy. If it does, we will issue an endorsement to show the new rates and their effective date.

If only one state is shown in Item 3.A of the Information Page, this endorsement applies to that state. If more than one state is shown there, this endorsement applies only in the state shown in the Schedule.

Schedule

State

90-DAY REPORTING REQUIREMENT—NOTIFICATION OF CHANGE IN OWNERSHIP ENDORSEMENT

You must report any change in ownership to us in writing within 90 days of the date of the change. Change in ownership includes sales, purchases, other transfers, mergers, consolidations, dissolutions, formations of a new entity, and other changes provided for in the applicable experience rating plan. Experience rating is mandatory for all eligible insureds. The experience rating modification factor, if any, applicable to this policy, may change if there is a change in your ownership or in that of one or more of the entities eligible to be combined with you for experience rating purposes.

Failure to report any change in ownership, regardless of whether the change is reported within 90 days of such change, may result in revision of the experience rating modification factor used to determine your premium.

This reporting requirement applies regardless of whether an experience rating modification is currently applicable to this policy.

This endorsement changes the policy to which it is attached and is effective on the date issued unless otherwise stated.

(The information below is required only when this endorsement is issued subsequent to preparation of the policy.)

Endorsement Effective 07/01/2023

Policy No. WEWC848533

Jxqatmdemxd Kh.

Insured

Premium

Granite Row

NorGUARD Insurance Compæ Countersigned by _____

WC 00 04 14 A

(Ed. 1-19)

PREMIUM DUE DATE ENDORSEMENT

This endorsement is used to amend:

Section D. of Part Five of the policy is replaced by this provision.

**PART FIVE
PREMIUM**

D. **Premium** is amended to read:

You will pay all premium when due. You will pay the premium even if part or all of a workers compensation law is not valid. **The due date for audit and retrospective premiums is the date of the billing.**

This endorsement changes the policy to which it is attached and is effective on the date issued unless otherwise stated.
(The information below is required only when this endorsement is issued subsequent to preparation of the policy.)

Endorsement Effective
Insured

Policy No. WEWC848533

Endorsement No.
Premium \$

Insurance Company

Countersigned by _____

Catastrophe (Other Than Certified Acts of Terrorism) Premium Endorsement

This endorsement is notification that your insurance carrier is charging premium to cover the losses that may occur in the event of a Catastrophe (Other Than Certified Acts of Terrorism) as that term is defined below. Your policy provides coverage for workers compensation losses caused by a Catastrophe (Other Than Certified Acts of Terrorism). This premium charge does not provide funding for Certified Acts of Terrorism contemplated under the Terrorism Risk Insurance Program Reauthorization Act Disclosure Endorsement (WC 00 04 22 C), attached to this policy.

For purposes of this endorsement, the following definitions apply:

- **Catastrophe (Other Than Certified Acts of Terrorism):** Any single event, resulting from an Earthquake, Noncertified Act of Terrorism, or Catastrophic Industrial Accident, which results in aggregate workers compensation losses in excess of \$50 million.
- **Earthquake:** The shaking and vibration at the surface of the earth resulting from underground movement along a fault plane or from volcanic activity.
- **Noncertified Act of Terrorism:** An event that is not certified as an Act of Terrorism by the Secretary of the Treasury pursuant to the Terrorism Risk Insurance Act of 2002 (as amended) but that meets all of the following criteria:
 - a. It is an act that is violent or dangerous to human life, property, or infrastructure;
 - b. The act results in damage within the United States, or outside of the United States in the case of the premises of United States missions or air carriers or vessels as those terms are defined in the Terrorism Risk Insurance Act of 2002 (as amended); and
 - c. It is an act that has been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
- **Catastrophic Industrial Accident:** A chemical release, large explosion, or small blast that is localized in nature and affects workers in a small perimeter the size of a building.

The premium charge for the coverage your policy provides for workers compensation losses caused by a Catastrophe (Other Than Certified Acts of Terrorism) is shown in Item 4 of the Information Page or in the Schedule below.

Schedule

State	Rate	Premium
NY	0.010	2.00

This endorsement changes the policy to which it is attached and is effective on the date issued unless otherwise stated.

(The information below is required only when this endorsement is issued subsequent to preparation of the policy.)

Endorsement Effective
Insured

Policy No. WEWC848533

Jxqatmdemxd Kh.

Premium

Granite Row

Countersigned by _____

WC 00 04 21 E
(Ed. 01-2021)

Terrorism Risk Insurance Program Reauthorization Act Disclosure Endorsement

This endorsement addresses the requirements of the Terrorism Risk Insurance Act of 2002 as amended and extended by the Terrorism Risk Insurance Program Reauthorization Act of 2019. It serves to notify you of certain limitations under the Act, and that your insurance carrier is charging premium for losses that may occur in the event of an Act of Terrorism.

Your policy provides coverage for workers compensation losses caused by Acts of Terrorism, including workers compensation benefit obligations dictated by state law. Coverage for such losses is still subject to all terms, definitions, exclusions, and conditions in your policy, and any applicable federal and/or state laws, rules, or regulations.

Definitions

The definitions provided in this endorsement are based on and have the same meaning as the definitions in the Act. If words or phrases not defined in this endorsement are defined in the Act, the definitions in the Act will apply.

"Act" means the Terrorism Risk Insurance Act of 2002, which took effect on November 26, 2002, and any amendments thereto, including any amendments resulting from the Terrorism Risk Insurance Program Reauthorization Act of 2019.

"Act of Terrorism" means any act that is certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security, and the Attorney General of the United States, as meeting all of the following requirements:

- a. The act is an act of terrorism.
- b. The act is violent or dangerous to human life, property, or infrastructure.
- c. The act resulted in damage within the United States, or outside of the United States in the case of the premises of United States missions or certain air carriers or vessels.
- d. The act has been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

"Insured Loss" means any loss resulting from an act of terrorism (and, except for Pennsylvania, including an act of war, in the case of workers compensation) that is covered by primary or excess property and casualty insurance issued by an insurer if the loss occurs in the United States or at the premises of United States missions or to certain air carriers or vessels.

"Insurer Deductible" means, for the period beginning on January 1, 2021, and ending on December 31, 2027, an amount equal to 20% of our direct earned premiums during the immediately preceding calendar

(Ed. 01-2021)

Limitation of Liability

The Act limits our liability to you under this policy. If aggregate Insured Losses exceed \$100,000,000,000 in a calendar year and if we have met our Insurer Deductible, we are not liable for the payment of any portion of the amount of Insured Losses that exceeds \$100,000,000,000; and for aggregate Insured Losses up to \$100,000,000,000, we will pay only a pro rata share of such Insured Losses as determined by the Secretary of the Treasury.

Policyholder Disclosure Notice

1. Insured Losses would be partially reimbursed by the United States Government. If the aggregate industry Insured Losses occurring in any calendar year exceed \$200,000,000, the United States Government would pay 80% of our Insured Losses that exceed our Insurer Deductible.
2. Notwithstanding item 1 above, the United States Government will not make any payment under the Act for any portion of Insured VANTAGE FABRICATION
3. The premium charge for the coverage your policy provides for Insured Losses is included in the amount shown in Item 4 of the Information Page or in the Schedule below.

Schedule		
State	Rate	Premium
NY	0.045	\$7.00

This endorsement changes the policy to which it is attached and is effective on the date issued unless otherwise stated.

(The information below is required only when this endorsement is issued subsequent to preparation of the policy.)

Endorsement Effective
Insured

Policy No. WEWC848533

Jxqatmdemxd Kh.

Premium

Granite Row

Countersigned by _____

WC 00 04 22 C
(Ed. 01-2021)

EXPERIENCE RATING MODIFICATION FACTOR REVISION ENDORSEMENT

This endorsement is added to Part Five—Premium of the policy.

The premium for the policy is adjusted by an experience rating modification factor. The factor shown on the Information Page may be revised and applied to the policy in accordance with our manuals and endorsements. We will issue an endorsement to show the revised factor, if different from the factor shown, when it is calculated.

This endorsement changes the policy to which it is attached and is effective on the date issued unless otherwise stated.

(The information below is required only when this endorsement is issued subsequent to preparation of the policy.)

Endorsement Effective 07/01/2023

Policy No. WEWC848533

Jxqatmdemxd Kh.

Insured

Premium

Granite Row

Countersigned by _____

NorGUARD Granite Row

WC 00 04 25

(Ed. 5-17)

WC 31 03 08

NEW YORK LIMIT OF LIABILITY ENDORSEMENT

This endorsement changes the policy to which it is attached effective on the inception date of the policy unless a different date is indicated below.

(The following "attaching clause" need be completed only when this endorsement is issued subsequent to preparation of the policy.)

This endorsement, effective on _____ at 12:01 A.M. standard time, forms a part of
(DATE)
Policy No. WEWC848533 of the _____
(NAME OF INSURANCE COMPANY)
issued to _____

Authorized Representative

This endorsement applies only to the insurance provided by Part Two (Employers Liability Insurance) because New York is shown in item 3.A of the Information Page.

We may not limit our liability to pay damages for which we become legally liable to pay because of bodily injury to your employees if the bodily injury arises out of and in the course of employment that is subject to and is compensable under the Workers Compensation Law of New York.

MARCUS YARROW

**CLASSIFICATION PREMIUM ADJUSTMENT PROGRAM
EXPLANATORY ENDORSEMENT**

The MARCUS YARROW Classification Premium Adjustment Program (NYCCPAP) allows premium credits for some employers in the construction industry. These credits exist to recognize the difference in wage rates between employers within the same construction industries in New York.

Credits are earned for average wages in excess of \$23.24 per hour for each eligible class. If your policy shows one of the following classification codes, and you are experience rated, you are eligible to apply for an NYCCPAP credit:

0042	5040	5188	5402	5474	5538	5701	6204		7601	9549
3365	5057	5190	5403	5479	5545	5703	6216	6306	7855	9553
3724	5059	5193	5428	5480	5547	5709	6217	6319	8227	
3726	5069	5213	5429	5491	5606	6003	6229	6325	9526	
3737	5102	5221	5443	5506	5610	6005	6233	6400	9527	
5000	5160	5222	5445	5507	5645	6017	6235	6701	9534	
5022	5183	5223	5462	5508	5648	6018	6251	7536	9539	
5037	5184	5348	5473	5536	5651	6045	6252	7538	9545	

If you have any eligible classes on your policy, you should have been notified by your insurance carrier or the New York Compensation Insurance Rating Board approximately four months prior to the inception date of this policy. If you believe you may be eligible for a credit and have not received an application, you should immediately contact your agent, insurance carrier, or the New York Compensation Insurance Rating Board.

The basis for determining the credit is the limited payroll of each employee for the number of hours worked (excluding overtime premium pay) for each construction classification (other than employees engaged in the construction of one or two-family residential housing). For policies with effective dates between January 1 and March 31, the payroll submitted is for the third quarter, as reported to taxing authorities, for the second calendar year preceding the policy effective date. For policies with effective dates between April 1 and December 31, the payroll submitted is for the third quarter, as reported to taxing authorities, for the calendar year preceding the policy effective date. Total payroll (and not limited payroll) is to be reported for employees engaged in the construction of one or two-family residential housing.

Credits are calculated by the New York Compensation Insurance Rating Board. Completed applications can be submitted to: Attention: Audit Division, New York Compensation Insurance Rating Board, 1450 Riverside , New York, New York 10017, email: keith.thorne@example.com or via entry on the CPAP online application on the Rating Board's website: <http://www.nycirb.org/cpap>.

The application for credit on a renewal policy must be received by the Rating Board three (3) months prior to the policy renewal effective date. The Rating Board will accept and process an application if it is received between the renewal policy effective and expiration date, however, it must be accompanied with an explanation from the employer stating the reason for the delay.

Under no circumstances will an original application be accepted for any policy if it is received after the expiration date of the policy to which the credit would have applied, nor will a revised application be accepted if it is received later than one (1) year from the expiration date of the policy to which the credit would have applied.

The New York Workers' Compensation and Employers' Liability Manual, and not this endorsement, govern the implementation and use of the NYCCPAP.

This endorsement changes the policy to which it is attached and is effective on the date issued unless otherwise stated.

(The information below is required only when this endorsement is issued subsequent to preparation of the policy.)

Endorsement Effective
Insured

Policy No. WEWC848533

Jxqatmdemxd Kh.

Premium

Granite Row

Countersigned by _____

WC 31 03 19 L

**NEW YORK WORKERS COMPENSATION
POLICYHOLDER NOTICE OF RIGHT TO APPEAL**

Policyholder Disputes

Policyholders are entitled to inquire, challenge and dispute issues relating to classification, ownership, premium auditing and/or other New York Compensation Insurance Rating Board ("Rating Board") rulings or decisions pertaining to this policy. Please refer to the FAIRMOUNT CONTRACTING noted below.

Inquiries may also be directed to the New York State Department of Financial Services (DFS) at:
<http://www.dfs.ny.gov/about/contactus.htm#consumer>
or by calling the Consumer Hotline at 800-342-3736 (Monday through Friday, 8:30 AM to 4:30 PM).

FAIRMOUNT CONTRACTING

An insured, or its representative, (hereafter referred to as "insured") may appeal the application of a rule or procedure contained in the New York Workers' Compensation & Employers' Liability Manual. Rules or procedures are defined as those determinations, either by a carrier or the Rating Board, which define the variables which make up, the policy conditions. Examples include: classification codes, ownership information, premium audits, and any other determination which may affect the policy.

To be considered for a review, a written request explaining the reason(s) for the appeal must be submitted to the Rating Board. Upon receipt of the request for review, the following actions will be taken:

1. The Rating Board will review the request and respond to the parties within sixty (60) days, either granting the parties or their authorized representatives their request or sustaining the Rating Board's original ruling.
2. If not satisfied with the outcome of 1. above, the parties may then request, in writing, a conference with members of the Rating Board staff. The request must state the nature of the complaint and supply any supporting documents. The appropriate Department Vice President or his or her designated representative will preside at the conference.
3. If the dispute is not resolved by the conference, the parties may then appeal to the Underwriting Committee of the Rating Board for a hearing to consider the staff ruling. This appeal must be in writing and must specify the reasons for the appeal and the nature of the complaint.

Following the Committee's receipt of the appeal request, the parties will be notified about the time and place for the hearing. The appeal will be heard at the next Underwriting Committee meeting for which appropriate time can be devoted to the matter.

After the hearing, the parties will be advised, in writing, of the Underwriting Committee decision on the complaint.

4. If the Underwriting Committee ruling is not satisfactory to either party, then the aggrieved party may request a hearing at the New York State Department of Financial Services to consider the disputed decision.
5. The decision of the New York State Department of Financial Services may be appealed to a court of law, by the parties involved or the Rating Board.

AUTHORIZATION AND ATTESTATION ENDORSEMENT

This endorsement authorizes the insurance contract between you and the GUARD Granite Row subsidiary listed on the INFORMATION PAGE of your insurance policy.

In Witness Whereof, this page executes and fully attests to this policy. If required by state law, the policy shall not be valid unless countersigned by our authorized representatives.

Authorizing signatures



Matthew O'Connor
General Counsel and Secretary



Sy Foguel, ACAS, FILAA
Chief Executive Officer and President



This endorsement authorizes the policy to which it is attached and is effective on the date issued unless otherwise stated.

(The information below is required only when this endorsement is issued subsequent to preparation of the policy.)

Endorsement
Insured

Effective Policy No. WEWC848533

Endorsement No.
Premium

Insurance Company
WC 99 00 00

Countersigned by _____

(Ed. 08-13)

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Berkshire Hathaway GUARD
P.O. Box AH • 8100 Harbor Lane
Herkimer, PA 13350-6137

570-825-9900 (Toll-Free 800-673-2465)
FAX 570-823-2059
www.guard.com

New York Workers' Compensation Security Fund Surcharge

Companies writing Workers' Compensation insurance business in New York are required to participate in the New York Workers' Compensation Security Fund. If a company becomes insolvent, the security fund settles unpaid claims and assesses each Granite Row for its fair share.

New York law requires all companies to surcharge policies to recover these assessments. Since your policy is affected by the "NY Security Fund Surcharge," an amount will be displayed on your premium notice.

If you have any questions about this matter, don't hesitate to contact us at **800-673-2465** for more information.

WE CAN HELP “A LITTLE” or “A LOT.”



At Berkshire Hathaway GUARD, we understand the importance of preventing claims. That's why we offer our policyholders a wide range of loss control resources – at no additional charge – that can help keep your interests protected.

From online materials to onsite consults, we can help “a little” or “a lot” depending upon the needs of customers.

1 ONLINE RESOURCES

Self-help tools available from our *Agency* and *Policyholder Service Centers* include:

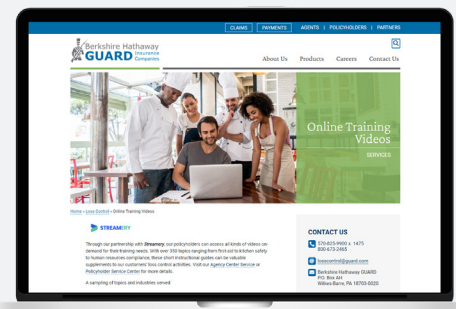
- Guides and educational materials
- Online video library
- The GUARD Wire – Offers useful safety information and best practices for both businesses and individuals

▶ Training Videos

Over 700 topics available through **Streamery**, such as:

- CONSTRUCTION SAFETY
- DIVERSITY & DISCRIMINATION
- FLEET MAINTENANCE
- FOOD SAFETY & RESTAURANTS
- HOSPITALITY
- OSHA COMPLIANCE
- RETAIL SAFETY
- WORKPLACE COMMUNICATIONS

Many available in English and Spanish.



2 SMART RISK MANAGEMENT

The “Internet of Things” (IoT) has particular value to the insurance industry because of the impact it can have on risk management. Not only can controlling losses lower claims costs, and thereby, insurance premiums, it can also save lives.

We are excited to be working with loss control engineers from around the country to provide our policyholders with convenient access to Smart Risk-Management devices (like those shown right) — often at a discounted price!

3 PROFESSIONAL SUPPORT

For certain insurance coverages, we partner with outside experts to offer our policyholders assistance through professional help lines and websites. From cyber security to liability issues, these venues feature a wide range of resources, tips, and “real-time” advice that can help mitigate common and, sometimes, not-so-common causes of claims.

4 CUSTOMIZED PLANS

For more customized needs, the scope of our activities can include many sorts of components, such as:

- Onsite, telephonic, and virtual surveys
- Facility audits and ongoing consults
- Analysis of loss patterns
- Safety committee training
- Systems analysis (i.e., sprinklers, fire alarms)
- Ergonomic evaluations and OSHA inspections
- Help with implementing a return-to-work program

“Smart” Devices



Cooktop Fire Suppressors

Designed for residential use, easy to install, and useful in minimizing property damage.



Water Leak Prevention & Shut-Off Systems

Detects and prevents water leaks by closing the water main; wireless options enable monitoring anytime, anywhere.

Contact Us



1-800-673-2465
x 1475 Commercial Lines
x 1476 Personal Lines



frances.yarrow@example.com



www.guard.com

may be unde
 Granite Row ®, NorGUARD Granite Row
) with princip

provide a general overview for marketing pur

ance, advice, or recommendations from licensed insurance or legal professionals or other industry experts. All state and federal rules/regulations apply. Only the relevant insurance policy and endorsements provide the terms and conditions of coverage. © 2022.

D Granite Row
 ®
 † 8100 Harbor Lane

® Granite Row
 Granite Row
 Canton, PA 13617

(non-admitted in CA & NY), EastGUARD Granite Row
 shire Hathaway GUARD Insurance Com

The information contained herein is not all inclusive but intended to
 ll GUARD companies or in all states and should not replace the guid-



Berkshire Hathaway GUARD

P.O. Box AH • 8100 Harbor Lane

Herkimer, PA 13350-6137

570-825-9900 (Toll-Free 800-673-2465)

FAX 570-823-2059

www.guard.com

NORTHVALE BUILDERS
5434 Meridian
Medina, NY 14103

AN IMPORTANT MESSAGE FROM YOUR WORKERS' COMPENSATION INSURER!!

Thank you for choosing Berkshire Hathaway GUARD Insurance Companies to satisfy your Workers' Compensation insurance needs! Attached, you will find important documents that explain the proper procedure for reporting a claim and obtaining treatment. At the time an injury is reported, we may suggest a conveniently located provider to you. However, your compliance is voluntary and does in fact require that your employee complete a *Notice of Consent to Utilize an Employer or Carrier Recommended Network or Health Care Provider* form prior to receiving treatment. Therefore, we suggest that you review the enclosed materials carefully. Your policy will be arriving separately through your agent.

YOUR AGENT'S NAME AND PHONE NUMBER ARE:

CLEARWATER ENTERPRISES

877-266-6850

The information needed by you to report a claim and obtain service is shown below.

-YOUR POLICY NUMBER IS WEWC848533

-YOUR INSURANCE CARRIER IS NORGUARD Granite Row

-YOUR POLICY EFFECTIVE DATE IS 07/01/2023

When reporting a claim, remember to use our toll-free number **888-639-2567** at all times (see Claims Reporting flyer). If you have a question of any kind, we encourage you to call us toll-free at **800-673-2465**.

Once again, we appreciate your decision to work with us, and we look forward to providing you with the high level of service you deserve!

enclosed: **Notice of Consent
Claims Reporting flyer**

**NEW YORK WORKERS COMPENSATION
PREMIUM CREDIT APPLICATION**

INSURED NORTHVALE BUILDERS
(DO NOT LEAVE POLICY # BLANK)
POLICY NO. WEWC848533

COMPLETE
EFFECTIVE DATE 07/01/2023

COVERAGE ID NO. _____
(MH NCS KMVSD RNLAWTG MSFTU)
CA GKKPHH22

NOTICE: This application will not be processed unless it is signed and completed in its entirety. Contact your agent, broker, or Granite Row if assistance is needed. If the application is not sent to the Rating Board three (3) months prior, on the insured's letterhead, addressed to the Rating Board, must be attached to the application, indicating why it was not sent in on time. If there is no letter with the application, it will not be processed.

- Qualifications** – An insured must be experience rated for the policy period applied for and must have an average hourly wage of \$23.25 or higher per hour under an eligible classification code. Include all eligible and non-eligible codes on the application. **Always visit the website for the most current CPAP form or any changes to the program.**
- Classification(s), Code(s), Total Wages Paid for residential work only or Limited Payroll for commercial work applicable to the Payroll Limitation Law, Total Hours Worked and calendar quarter reported must be indicated. Once completed, keep a copy for yourself.

NOTE: Limited Payroll for commercial work means the weekly maximum (see attached) for work on structures other than one or two family dwellings in accordance with the Payroll Limitation Law. If you perform commercial work under any eligible code(s) enter each employee for the weekly maximum only and their total hours worked (ex. 13 weeks X Limited Payroll (see attached) = total wages).
- Construction and non-construction wages must be included. DO NOT include the payrolls for subcontractors and independent contractors. A separate application is required for each policy. The eligibility and determination of a CPAP factor will be done on a per policy basis. This includes insured's that are combined for experience rating purposes and for wrap-up policies.
- Each executive officer's wage and title is to be separately shown under the appropriate classification code. Hours worked for each executive officer are to be stated as 520 per quarter (if the executive officer(s) are excluded from coverage, then no entry is required).

<u>CLASSIFICATION</u>	<u>CODE</u>	<u>3RD QUARTER NEW YORK WAGES PAID*</u>	<u>TOTAL HOURS WORKED</u>
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

* EXCLUDING OVERTIME PREMIUM PAY. Overtime premium pay is the wage paid above the straight time hourly pay. Ex: If an employee earns \$20/hr. but earns overtime pay at an hourly rate of \$30, exclude the additional \$10. Include the total hours worked at straight time wage not time and one half.

The foregoing is based on actual wages and hours worked, as reflected in our payroll records, for the complete calendar quarter ending _____. Do not send payroll records or tax forms.

Any person who knowingly and with intent to defraud any Granite Row or other person files an application for insurance or statement of claim containing information or conceals for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties.

NAME _____ TITLE _____

SIGNATURE _____ TELEPHONE NUMBER _____ DATE _____

EMAIL ADDRESS _____

CLASSIFICATION PREMIUM ADJUSTMENT PROGRAM APPLICATION INSTRUCTIONS

- 1) Determine the classification code applicable to *all employees* of the business. This includes clerical workers, salespersons and executive officers (unless they are excluded from coverage) but does *not* include subcontractors and independent contractors. Eligible classification codes are shown below.
- 2) List each classification code on the application (unless the insurance carrier has already done so). *This includes both eligible and non-eligible* classification codes. Any information that is not filled out or left blank, the application will not get processed and not get credited as sent to the Rating Board.
- 3) Determine the limited payroll (excluding premium overtime pay, bonuses, commissions) and hours worked for each employee performing commercial work in accordance with the Payroll Limitation Law. For employees performing work on one or two-family residential housing, report the total gross wages and hours worked. The program uses the third quarter (July, August, and September) payrolls as shown below:

<u>Policy Effective Date</u>	<u>Third Quarter Payroll</u>	<u>LIMITED PAYROLL</u>
April 1, 2017 thru March 31, 2018	2016	\$1296.48
April 1, 2018 thru March 31, 2019	2017	\$1305.92
April 1, 2019 thru March 31, 2020	2018	\$1357.11
April 1, 2020 thru March 31, 2021	2019	\$1401.17
April 1, 2021 thru March 31, 2022	2020	*
April 1, 2022 thru March 31, 2023	2021	*

*To Be Determined

NOTES ON ITEM #3

(Premium overtime pay is the amount paid over and above straight time. As an example, if someone worked 40 hours @ \$6 an hour and 2 hours @ \$9 an hour, the employee should be included on the application for 42 hours @ \$6 per hour (\$252). The additional \$3 paid for the 2 hours of overtime is excluded as long as the payroll records are properly maintained.) (Overtime is included as straight time not time and half.)

Total the payrolls and hours worked by classification code as well as by the type of work performed (residential or commercial). List each applicable classification code on the application showing the residential total payroll and the limited commercial payroll on separate lines. This means that the same classification code could appear twice on the same application. Hours worked for non-eligible classification codes are not required. The payrolls of all employees are to be included, even those earning an hourly wage that is less than the minimum hourly wage for eligibility under the program.

The program grants credits based on the *average* hourly wage for those classification codes eligible for the program. A separate application is required for each policy. The eligibility and determination of a CPAP factor will be done on a per policy basis. This includes insured's that are combined for experience rating purposes and for wrap-up policies.

- 4) List each executive officer on a *separate* line showing the applicable classification code for each executive officer if they are included. Also indicate each executive officer's title (if the executive officer(s) are excluded from coverage, then no entry is required).
- 5) List the actual quarterly wages for each executive officer (if the executive officer(s) are excluded from coverage, then no entry is required). If the officer is included under a classification code that is eligible under the Payroll Limitation Law, use the limited payroll for that executive officer for the required 520 hours per quarter.

- 6) Sign, date and mail the application to: NY Compensation Insurance Rating Board
Or email to (*Preferred & Recommended*): 1450 Riverside

janet.ormsby@stonepathins.com

Oneonta, NY 13820

Attention: Terry Gerics, Audit Analyst

Applications can also be entered using our online system starting 3 months (not before) prior to renewal at: http://www.nycirb.org/nycirb-portal/premium_adjustment/index.php

FAQ's are located at: http://www.nycirb.org/nycirb-portal/premium_adjustment/faq.php

Corrections, incorrect applications or confirmation of applications received, will be notified on those that were sent via email only. It is suggested that you send applications via email for that reason.

ELIGIBLE CLASSIFICATION CODES

0042	5000	5059	5184	5221	5403	5462	5491	5538	5645	5709	6045	6233	6306	7536	9526	9549
3365	5022	5069	5188	5222	5428	5473	5506	5545	5648	6003	6204	6235	6319	7538	9527	9553
3724	5037	5102	5190	5223	5429	5474	5507	5547	5651	6005	6216	6251	6325	7601	9534	
3726	5040	5160	5193	5348	5443	5479	5508	5606	5701	6017	6217	6252	6400	7855	9539	
3737	5057	5183	5213	5402	5445	5480	5536	5610	5703	6018	6229	6260	6701	8227	9545	

NOTE: This application must be received by the Rating Board three (3) months prior to the policy renewal effective date. The Rating Board will accept and process an application if it is received between the policy effective and expiration date, however, it must be accompanied by a letter stating the reason for the delay. The submission of a revised application must be received no later than one (1) year after the expiration date of the policy to which the credit applies.

Under no circumstances will an original application be accepted for any policy if it is received after the expiration date of the policy, nor will a revised application be accepted if it is received later than one (1) year from the expiration date of the policy to which the credit applies. For short-term policies, the application must be received prior to the expiration date of the short-term policy.

A credit will not be calculated if any application is received beyond the required dates of receipt.



Berkshire Hathaway GUARD
P.O. Box AH • 8100 Harbor Lane
Herkimer, PA 13350-6137

570-825-9900 (Toll-Free 800-673-2465)
FAX 570-823-2059
www.guard.com

Important Alert for Policy #WEWC848533

Please read this important advance notice which outlines our policy for handling Workers' Compensation premium for subcontractors. If you have any questions or do not understand any portion of the explanation, we suggest you contact your agent immediately because the cost of your coverage may be affected at final audit time.*

Premium Charge for Subcontractors

If you hire subcontractors who do not have their own Workers' Compensation insurance, your premium calculation will be modified to include any amounts paid for their labor. This additional premium is addressed in Part Five C 2 of your policy and compensates us for the risk that one or more of these subcontractors (or one of the subcontractor's employees) will file a claim for benefits under your coverage.

Although subcontractors may appear to be independent businesses, claims filed by them (or their employees) are common after an injury. Under Workers' Compensation law, the legal definition of "employee" is much broader than the common understanding of that term. In addition, many states make you – as the contractor – automatically responsible for certain expenses due to work-related injuries to your independent subcontractors or their employees. Regardless of the state law, NorGUARD Granite Row must pay legal fees under Part One of your policy to defend these claims and must also pay Workers' Compensation benefits in many cases.

For these reasons and in accordance with Part Five C 2 of your policy, we will charge appropriate additional premium unless the subcontractors have their own in-force Workers' Compensation coverage during your entire policy period, and you are able to provide acceptable proof of this coverage to us prior to completion of your final audit. Evidence of general liability insurance, pre-determinations or statements of independent contractor status, hold harmless agreements, etc. are not acceptable substitutes, and no exceptions will be made for sole proprietors or others on the grounds that such parties are not required to purchase (or cannot purchase) Workers' Compensation insurance. The risk of a claim against your policy from an uninsured subcontractor is the same, regardless of his or her reason for having no coverage. Furthermore, these additional charges will be imposed when applicable, even if exceptions have been granted to you by us or by another carrier in the past.

Please realize that premium may be charged for subcontractors hired by uninsured entities owned or controlled by you. Premium will be charged if the Rating Bureau rules in your state require the related entity to be combined in a single policy with the company we are insuring.

Ultimately, we believe this policy is in the best interests of all parties, and we hope that this advance notification will prevent any misunderstandings at a later date. As always, we thank you for selecting NorGUARD Granite Row, and we look forward to serving you during the upcoming policy year.

***Note: A "subcontractor" is a person or organization paid to assist you in providing a product or service to your customer or client (and not just to you). Workers' Compensation laws in most states presume that such vendors are "employees" who, therefore, often file claims seeking benefits.**

STATE OF NEW YORK - WORKERS' COMPENSATION BOARD
ESTADO DE NUEVA YORK - JUNTA DE COMPENSACION OBRERA

NOTICE OF COMPLIANCE

TO EMPLOYEES

IMPORTANT INFORMATION FOR EMPLOYEES WHO ARE
INJURED OR SUFFER AN OCCUPATIONAL DISEASE WHILE
WORKING.

1. By posting this notice and information concerning your rights as an injured worker, your employer is in compliance with the Workers' Compensation Law.
2. If you do not notify your employer within 30 days of the date of your injury your claim may be disallowed, so do so immediately.
3. You are entitled to obtain any necessary medical treatment and should do so immediately.
4. You may choose any doctor, podiatrist, chiropractor or psychologist referred by a medical doctor that accepts NY State Workers' Compensation patients and is Board authorized. However, if your employer is involved in a certified preferred provider organization (PPO) you must first be treated by a provider chosen by your employer and your employer must give you a written statement of your rights concerning further medical care.
5. You should tell your doctor to file copies of medical reports concerning your claim with the Workers' Compensation Board and with your employer's Granite Row, which is indicated at the bottom of this form.
6. You may be entitled to lost time benefits if your work-related injury keeps you from work for more than seven days, compels you to work at lower wages or results in permanent disability to any part of your body. You may be entitled to rehabilitation services if you need help returning to work.
7. You should not pay any medical providers directly. They should send their bills to your employer's insurance carrier. If there is a dispute, the provider must wait until the Board makes a decision before it attempts to collect payment from you. If you do not pursue your claim or the Board rules that your injury is not work-related, you may be responsible for the payment of the bills.
8. You are entitled to be represented by an attorney or licensed representative, but it is not required. If you do hire a representative do not pay him/her directly. Any fee will be set by the Board and will be deducted from your award.
9. If you have difficulty in obtaining a claim form or need help in filling it out, or if you have any other questions or problems about a job-related injury, contact any office of the Workers' Compensation Board.

WORKERS' COMPENSATION BOARD OFFICES

Albany, 12241 - 100 Broadway-Menands - (607) 663-2237
*Brooklyn, 11201 - 5003 Chestnut Road - Brooklyn - (321) 835-2125
Binghamton, 13901 - State Office Bldg. - 1063 Station - (410) 636-9611
Buffalo, 14203 - 8030 Maple Road, Suite 400 - (647) 374-3956
*Hauppauge, 11788 - 1220 Commerce - Suite 100 - (543) 726-8334
*Hempstead, 11550 - 369 Meridian Lane - (718) 532-2349
*New York, 10027 - 215 W. 125th St., Manhattan - (331)-263-6365
*Peekskill, 10566 - 8336 Summit Boulevard - (374) 358-4929
*Queens, 11432 - 168-46 Ave., Jamaica - (321) 835-2125
Rochester, 14614 - 7834 Franklin West - (764) 212-1835
Syracuse, 13203 - 2506 Station - (426) 669-4693

*DOWNSTATE MAILING ADDRESS

Claims-related mail for the Hauppauge, Hempstead, Peekskill and all NYC offices should be mailed to: PO Box 1149 Boonville, NY 13309-7510

Statewide Fax: 877-533-0337

Workers' Compensation benefits, when due, will be paid by (Los beneficios de Compensación Obrera, cuando debidos, serán pagados por):

Name, address and telephone number of licensed insurance carrier, authorized group self-insurer or main office of authorized self-insurer

NorGUARD Granite Row
P.O. Box 9844
Kingston, PA 12401-3051
888-639-2567

For Insurance Carriers ONLY: Policy No. WEWC848533

Policy in Force from 07/01/2023 to 07/01/2024

C-105 (1-11)

Workers' Compensation Board
Prescribed of by Chairman
State New York

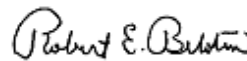
www.wcb.state.ny.us

AVISO DE CUMPLIMIENTO

A EMPLEADOS

INFORMACION IMPORTANTE PARA EMPLEADOS QUE
SEAN LESIONADOS O SUFRAN UNA ENFERMEDAD
OCUPACIONAL MIENTRAS TRABAJAN.

1. Su patrono está cumpliendo la Ley de Compensación Obrera cuando despliega este comunicado concerniente a sus derechos como trabajador lesionado.
2. Si usted no notifica a su patrono dentro del término de 30 días de haber sufrido su lesión su reclamación podría ser desestimada, por eso notifique inmediatamente.
3. Usted tiene derecho a recibir cualquier tratamiento médico necesario relacionado con su lesión y debe gestionarlo inmediatamente.
4. Para el tratamiento de cualquier lesión o enfermedad relacionada con el trabajo, usted puede escoger cualquier médico, podiatra, quiropractico ó psicologo (si es referido por un médico autorizado) que esté autorizado y acepte pacientes de la Junta de Compensación Obrera. Sin embargo, si su patrono está autorizado a participar en una organización certificada de proveedores preferidos (PPO), usted deberá obtener tratamiento inicial para cualquier lesión o enfermedad relacionada con el trabajo de la correspondiente entidad. Patronos que participen en cualquiera de estos programas establecidos por ley estan obligados a proveer a sus empleados notificación escrita explicando sus derechos y obligaciones bajo el programa a que esté acogido.
5. Usted deberá requerir de su Médico que radique copias de los informes médicos de su caso en la Junta de Compensación Obrera y en la compañía de seguros de su patrono, que se indica al final de esta forma.
6. Usted tiene derecho a compensación si su lesión relacionada con el trabajo le impide trabajar por más de siete días, le obliga a trabajar a sueldo más bajo ó resulta en incapacidad permanente de cualquier parte de su cuerpo. Usted puede tener derecho a servicios de rehabilitación si necesita ayuda para regresar al trabajo.
7. No pague a ningún proveedor médico directamente por tratamiento de su lesión o enfermedad relacionada con el trabajo. Ellos deben enviar sus facturas al asegurador de su patrono. Si el caso es cuestionado, el proveedor deberá esperar hasta que la Junta decida el caso, antes de iniciar gestión de cobro alguna contra usted. Si usted no tramita su caso ó la Junta falla que su lesión o enfermedad no está relacionada con el trabajo, usted podría ser responsable del pago de las facturas.
8. No es obligatorio el estar representado en ninguno de los procedimientos de la Junta, pero es un derecho que usted tiene, el estar representado por abogado ó por representante licenciado si usted así lo desea. Si es representado, no pague al abogado ó al representante licenciado. Cuando la Junta decida su caso, los honorarios serán determinados por la Junta y descontados de sus beneficios.
9. Si tiene dificultad en conseguir un formulario de reclamación o necesita ayuda para llenarlo ó tiene dudas sobre cualquier situación relacionada con una lesión o enfermedad comuníquese con la oficina mas cercana de la Junta.



ROBERT E. BELOTEN, CHAIR/PRESIDENTE

Name of employer (Nombre del patrono)

NORTHVALE BUILDERS

**THIS NOTICE MUST BE POSTED
CONSPICUOUSLY IN AND ABOUT THE
EMPLOYER'S PLACE OR PLACES OF
BUSINESS.**

Failure by an employer to post this notice in and about the employer's place or places of business may result in a \$250 penalty for each violation.

PRIVACY POLICY

Rev. February, 2020

WHAT DO BERKSHIRE HATHAWAY GUARD INSURANCE COMPANIES DO WITH YOUR PERSONAL INFORMATION?

FACTS	
Berkshire Hathaway GUARD Insurance Companies include: AmGUARD Granite Row, AZGUARD Granite Row, EastGUARD Granite Row, NorGUARD Granite Row, WestGUARD Granite Row, GUARDCo, Inc., (a medical management affiliate).	
Why?	Financial Companies choose how they share your personal information. Federal and State law gives consumers the right to limit some, but not all, sharing. Federal law also requires us to tell you how we collect, share, and protect your personal information. Please read this notice carefully to understand what we do.
What?	The types of personal information we collect and share depend upon the product or service you have with us. This information can include: • Social Security Number, date of birth, driving record, income • Credit history, credit-based insurance scores, insurance claim history, payment history When you are no longer our customer, we continue to share your information as described in this notice.
How?	All financial companies may need to share customers' personal information to run their everyday business. In the section below, we list the reasons insurance companies share their customers' personal information; the reasons we choose to share; and whether you can limit this sharing.

REASONS WE CAN SHARE YOUR PERSONAL INFORMATION		Does Berkshire Hathaway GUARD share?	Can you limit this sharing?
For our everyday business purposes— such as to process your transactions, maintain your account(s), respond to court orders and legal investigations, comply with government agency examinations/procedures, or report your creditworthiness.		Yes	No
For our marketing/processing purposes— to offer our products and services to you. (We may also disclose information received from you with companies that perform services for us.)		Yes	No
For our affiliates' everyday business purposes— information about your transactions and experiences.		Yes	No
For our affiliates' everyday business purposes— information about your creditworthiness.		Yes	Yes
For our affiliates to market to you		Yes	Yes
For non-affiliates to market to you		Yes	Yes
To limit our sharing	Call Customer Service at 1-800-673-2465 or visit us online at www.guard.com/privacy/. Please note: If you are a new customer, we can begin sharing your information 30 days from the date we provided this notice. When you are no longer our customer, we continue to share your information as described in this notice in accordance with applicable law. However, you can contact us at any time to limit our sharing in accordance with the table above.		
Questions?	Call Customer Service at 1-800-673-2465.		

Who we are	
Who is providing this notice?	Berkshire Hathaway GUARD Insurance Companies (including property and casualty licensees AmGUARD Granite Row, AZGUARD Granite Row, NorGUARD Granite Row, EastGUARD Granite Row, and/or WestGUARD Granite Row as well as GUARDCo, Inc.) is providing this notice. References in this form to "us", "we" or "our" refers to these companies.
What we do	
How do we protect your personal information?	To protect your personal information from unauthorized access and use, we implement security measures that comply with applicable law. These measures include computer safeguards and secured files and buildings.
How do we collect your personal information?	We collect your personal information, for example, when you: • apply for insurance • pay insurance premiums • file an insurance claim • give us your income information • give us your contact information. We also collect your personal information from others (such as credit bureaus, affiliates, or other companies) including, for example, from: • your insurance agent or producer • your transactions with our affiliates listed below or other consumer reporting agencies.
Why can't I limit all sharing?	Applicable law gives you the right to limit only: • sharing for affiliates everyday business purposes – information about your creditworthiness and insurability • affiliates from using your information to market to you • sharing for non-affiliates to market to you.
What happens when I limit sharing for a policy I hold jointly with someone else?	Your choices will apply to everyone on your policy.
Definitions	
Affiliates	<i>Companies (other than the companies identified in "Facts" above) that are related to us by common ownership or control of Ironvale Enterprises. Affiliates can be financial and nonfinancial companies.</i>
Non-affiliates	<i>Companies not related to us by common ownership or control, which can be financial and nonfinancial companies.</i>
Marketing	<i>The promotion or advertising of insurance products or services to you. Marketing partners may include, but are not limited to, insurance licensees such as insurance agents appointed by us or their affiliates.</i>
Other Important Information	
Important Information about Credit Reporting: We may report information about your account to credit bureaus. Late payments, missed payments or other defaults on your account may be reflected in your credit report. For California Residents: If you opt out, we will not share information we collect about you with nonaffiliated third parties, except as permitted by California law, such as to process your transactions or to maintain your account. Please visit www.guard.com/privacy-policy/ to review our California Privacy Policy. For Vermont Residents: We will not disclose information about your creditworthiness to our affiliates and will not disclose your personal information, financial information, credit report, or health information to nonaffiliated third parties to market to you, other than as permitted by Vermont law, unless you authorize us to make those disclosures.	

SEPARATOR PAGE

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